

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isabel Cifarelli	Team: Squad #13	CCRB Case #: 202006683	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 04/05/2020 2:30 PM	Location of Incident: § 87(2)(b)	Precinct: 123	18 Mo. SOL 10/5/2021	EO SOL 5/4/2022	
Date/Time CV Reported Tue, 10/06/2020 10:40 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 10/06/2020 10:40 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. INSP Thomas Delahanty	00000	887778	PBBN
3. CPT Timothy Wilson	00000	924628	122 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Frank Gravano	7357	945783	ESS 05
2. DTS Nicholas Gentile	07193	936657	ESS 05
3. SGT Kappa Farid	467	925259	123 PCT
4. POM James Wolfe	31784	942719	123 PCT
5. POM Arniko Shrestha	30594	946556	123 PCT
6. POM Brian Johnson	12949	941945	123 PCT
7. POF Marissa Pascone	00933	965400	123 PCT
8. POM Michael Difalco	03761	934756	123 PCT
9. POM Tony Chung	13233	957461	123 PCT
10. POM Maciej Hajbert	25840	964039	123 PCT
11. CPT Patrick Malarkey	00000	920542	FISCAL AFF

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Abuse: Officers entered § 87(2)(b) in Staten Island.	§ 87(2)(b)
B. Officers	Abuse: Officers damaged § 87(2)(b)'s property.	§ 87(2)(b)
C. Officers	Force: Officers used physical force against § 87(2)(b)	§ 87(2)(b)
D. Officers	Force: Officers used physical force against § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
E.INSP Thomas Delahanty	Abuse: Inspector John Delahanty forcibly removed § 87(2)(b) to the hospital.	
F.CPT Timothy Wilson	Abuse: Captain Timothy Wilson forcibly removed § 87(2)(b) to the hospital.	

Case Summary

On October 6, 2020, § 87(2)(b) filed this complaint via the CCRB's call processing system.

On April 5, 2020, at approximately 4:10p.m., § 87(2)(b)'s neighbor, § 87(2)(b) called 911 due to a water leak in § 87(2)(b)'s home, located at § 87(2)(b) in Staten Island. Several officers, including PO Michael DiFalco, PO Marissa Pascone, PO Arniko Shrestha, PO Maciej Hajbert, PO Brian Johnson, PO James Wolfe, PO Tony Chung, and Sgt. Kappa Farid, all of the 123rd Precinct, responded to the scene. After approximately 40 minutes, the officers contacted the Emergency Services Unit (ESU) to respond to the scene. After § 87(2)(b) repeatedly refused to let the officers in, ESU officers opened the door, allegedly damaging it in the process (**Allegations A and B: Abuse of Authority, § 87(2)(g)**). The door allegedly hit § 87(2)(b) upon opening (**Allegation C: Force, § 87(2)(g)**). Officers removed § 87(2)(b) from the home, handcuffed her, and strapped her to a stretcher (**Allegation D: Force, § 87(2)(g)**). Captain Timothy Wilson, also of the 123rd Precinct, and Inspector Thomas Delahanty of Patrol Borough Brooklyn North, made the decision to remove § 87(2)(b) to § 87(2)(b) (**Allegation E: Abuse of Authority, § 87(2)(g)**); **Allegation F: Abuse of Authority, § 87(2)(g)**). No arrest or summons resulted from this incident.

The investigation received 16 body-worn camera ("BWC") videos recorded by PO DiFalco, PO Pascone, PO Shrestha, PO Hajbert, PO Johnson, PO Wolfe, PO Chung, and Sgt. Farid, and Det. Nicholas Gentile and Det. Frank Gravano of ESU. The videos are in IAs # 58-73 (**BR 01-16**) and summarized in IAs #85, 86, 92, 93, and 102-112 (**BR 17-30**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Officers entered § 87(2)(b) in Staten Island.

Allegation (B) Abuse of Authority: Officers damaged § 87(2)(b)'s property.

Allegation (C) Force: Officers used physical force against § 87(2)(b)

Allegation (D) Force: Officers used physical force against § 87(2)(b)

§ 87(2)(b) testified that she was asleep on her couch when she heard someone banging on her door (**BR 31**). Her neighbor, § 87(2)(b) was at the door and stated that there was water leaking from § 87(2)(b)'s home into her home. § 87(2)(b) stated that there was no water leaking in her house. The two argued for a few minutes, then § 87(2)(b) stated that she would call the police. Approximately 15-20 minutes later, five to six police vehicles, a fire truck, and an ambulance arrived. Several officers exited their vehicles and approached § 87(2)(b)'s front door. Sgt. Farid banged on her door and stated that § 87(2)(b) needed to open it. § 87(2)(b) told Sgt. Farid to get away from her door and that she would not open it until the officers put on gloves and face masks. She told Sgt. Farid that she was not saying they could not come in, just that in order to come in, they had to put masks and gloves on. § 87(2)(b) stated that she could not let the officers in without a mask and gloves because she was very sick, very susceptible to germs, and had a weak immune system. Every time § 87(2)(b) asked Sgt. Farid to put on a mask before entering, he responded by telling her to open the door. He did not ever tell § 87(2)(b) why he wanted her to open the door. This went on for approximately an hour.

§ 87(2)(b) stated that officers ultimately broke down the door, which hit her and threw her backward into the staircase, three to four feet from the door. § 87(2)(b) landed on her back with her head near the seventh or eighth step. An unknown number of officers entered and began trying to handcuff her. While this was happening, several officers walked into § 87(2)(b)'s garage, which was apparently the source of the water leak. § 87(2)(b) had several pre-existing injuries: a broken arm, a broken wrist, and broken ribs. She told the officers not to touch her, but they continued handcuffing her by pulling her arms behind her back. Two officers handcuffed her while two other officers held her legs. The officers picked her up and carried her out

of the house. When § 87(2)(b) returned home later that day, she observed that the wood in her door frame near where the door latches was split, and a bracket had been attached to the door to stabilize it. The wood in the door itself, near the door handle, was also split, affecting its ability to lock. There was also a large mess in her garage, where the officers had been to turn off the water. § 87(2)(b) provided pictures of this damage to the investigation (**BR 32-34**), and of the bruising and swelling of her wrist that she experienced following this incident (**BR 35-36**).

In PO DiFalco's first BWC video, PO DiFalco, the first police officer to knock on § 87(2)(b)'s door, does so at the 01:08 mark of the media player timestamp (3:51p.m. according to onscreen timestamp) (**BR 02**). ESU officers open her door at the 57:18 mark of the media player timestamp (4:47p.m. according to onscreen timestamp). Between the 01:08 and 11:01 marks, PO DiFalco, PO Pascone, PO Chung, and § 87(2)(b) all attempt to speak to § 87(2)(b) through the door and try to convince her to open it.

Sgt. Farid's first BWC video, from the 00:41 to 01:45 minute marks of the media player timestamp (visible at the bottom of the screen), shows Sgt. Farid speaking to FDNY Chief Peter Traut, who states that there is water coming through the wall of the house into the adjoining building, sweat marks on the foundation near an air conditioner, and evidence of sewage coming back out through the vents of the house (**BR 08**). He states that he wants to get into the house to isolate any water leak near electricity to prevent a fire. He states that he shut down electric in two buildings but cannot get into § 87(2)(b). PO DiFalco is audible stating that he just got off the phone with § 87(2)(b) who told him that the president and the governor said she did not have to let anyone inside the house. Chief Traut states that he tried to knock on her door previously, and she started screaming and banging on the door. Sgt. Farid's hands are visible and he is wearing gloves. From the 02:29 to 04:19 marks of the same video, Sgt. Farid walks to the front door of § 87(2)(b) and begins knocking on the door. He states that it is an emergency and that he needs to talk to her. He asks another officer to call her. The officer does so and hands the phone to Sgt. Farid, who places it on speakerphone. § 87(2)(b) does not answer the call, so Sgt. Farid continues to tell her through the door that he needs to talk to her, that it is an emergency, and if she does not open the door, they will need to break it. § 87(2)(b) yells through the door, "If you break my fucking door, you'll have to fucking pay for it."

Sgt. Farid's second BWC video shows officers standing outside of § 87(2)(b)'s home for an additional 34 minutes, knocking on the door and asking her to open it (**BR 09**). From the 02:36 to 04:26 marks, § 87(2)(b)'s neighbor, § 87(2)(b) speaks to § 87(2)(b) through the closed door and tries to convince her to let the Fire Department in. From the 08:33 to 12:04 marks, Sgt. Farid continues to knock on the door and tell § 87(2)(b) that they need to get in. Sgt. Farid and § 87(2)(b) continue trying to get § 87(2)(b) to open the door, and at the 13:50 mark, § 87(2)(b) calls § 87(2)(b) and Sgt. Farid speaks to her on the phone. She is audible stating that she does not have to open the door, and Sgt. Farid states again that there is water flowing from her house and that she only needs to let the Fire Department in. Sgt. Farid returns to the door multiple times to attempt to convince her. Det. Frank Gravano, Det. Nicholas Gentile, and several other officers from ESU arrive, as do the duty captain, Captain Patrick Malarkey of Patrol Borough Staten Island, Cpt. Wilson, and Insp. Delahanty.

No officer's BWC captures a request from § 87(2)(b) to put a mask or gloves on.

Det. Gravano's BWC from the 00:22 to 00:32 marks shows Det. Gravano telling § 87(2)(b) to step back three times (**BR 10**). § 87(2)(b) is visible through the window in the door standing directly behind the door. Det. Gravano appears to use a large black ram to strike the door, which causes it to open. § 87(2)(b) is behind the door and her left wrist is visible. She screams when the door opens. She falls back onto the stairs, and a plastic shovel that was apparently wedged under the doorknob falls to the ground. As she stands back up and outstretches her right arm in front of her, the door closes a few inches, and Det. Gravano opens it again.

In Det. Gentile's BWC from the 01:11 to 01:48 marks, § 87(2)(b) reaches her hand out of the door and swats it toward the officers (**BR 11**). Det. Gentile reaches in and appears to

attempt to grab § 87(2)(b)'s arm. Det. Gravano leans in and places a hand on § 87(2)(b)'s arm. He lunges forward and appears to land over § 87(2)(b) who is on her back on the stairs. She continues to move her arms around while Det. Gravano places one handcuff on her left wrist. She tells the officers to get off of her and states that she has done nothing wrong and that the officers cannot put handcuffs on her. § 87(2)(b) and Det. Gentile continue to struggle on the stairs for approximately 20 seconds. From the 01:51 to 02:46 marks, § 87(2)(b) grips onto the front door with both hands and tells the officers that she is not leaving. § 87(2)(b) states that she has a broken arm, and the officers state that they will pick her up. She continues to tell the officers to, "Get the fuck out of my house" as she is laying on the floor with officers holding her arms and legs. The officers carry her out of the house.

PO Pascone's first BWC video from the 59:03 to 59:55 marks shows the officers pulling § 87(2)(b) out of the house by her arms and legs, placing her on the ground, moving her hands behind her back, and placing one set of handcuffs on her left hand and another set on the right, connecting them in the middle, seemingly in response to § 87(2)(b) saying her arms is broken and wearing what looks like an ace bandage (**BR 01**). The officers then guide § 87(2)(b) to a standing position before placing her on a stretcher and strapping her in.

PO DiFalco, PO Pascone, Sgt. Farid, Cpt. Malarkey, and Cpt. Wilson all testified that the officers entered the house both because of the emergent situation with the water leak and in order to handcuff § 87(2)(b) (**BR 37-41**). None of them recalled observing any damage to the door, and they did not observe the door hit her when it opened. Sgt. Farid, PO DiFalco, and Cpt. Wilson all testified that § 87(2)(b) was kicking and punching at the officers while they attempted to place her in handcuffs and remove her from the home. PO Pascone testified that § 87(2)(b) was put in handcuffs for the officers' safety and to allow them to enter to turn off the water.

A police officer may enter a residence without a warrant or the occupant's consent under the emergency doctrine if they have reasonable grounds to believe that there is an emergency at hand and an immediate need for assistance in the protection of life or property. There must also be some reasonable basis, approximating probable cause, to associate the emergency with the location to be entered, per People v. Rodriguez, 77 A.D.3d 280 (2d Dept. 2010) (**BR 42**). Police officers may damage property only if doing so is reasonably necessary to carry out their duties, per Onderdonk v. State, 648 N.Y.S.2d 214 (Ct. Cl. 1996) (**BR 43**). NYPD Patrol Guide, Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of service or a third person, or when it is reasonable to place a person in custody (**BR 44**). The member of service must use only the reasonable force necessary to gain control of the individual.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (E) Abuse of Authority: Inspector John Delahanty forcibly removed § 87(2)(b) to the hospital.

Allegation (F) Abuse of Authority: Captain Timothy Wilson forcibly removed § 87(2)(b) to the hospital.

In Sgt. Farid's second BWC video from the 15:39 to 16:20 marks of the media player timestamp (visible at the bottom of the screen), Sgt. Farid and § 87(2)(b) are standing directly outside § 87(2)(b)'s door, speaking to her on speakerphone on § 87(2)(b)'s phone (BR 09). § 87(2)(b) states that there is no water leaking from the house, and that a plumber already came to her home and shut the water off. Sgt. Farid explains that they need to get in anyway to double check because there is still water leaking from her house. She states that no one can get to the source of the water because too many of her belongings are in the way. This claim is confirmed in Det. Gravano's BWC from the 04:12 to 04:42 marks, which shows officers inside the garage climbing over large piles of § 87(2)(b)'s items in order to reach the source of the water leak (BR 10).

PO Pascone's first BWC video shows that once § 87(2)(b) was strapped into the stretcher, she was taken directly to the ambulance (BR 01).

As discussed above, § 87(2)(b) testified that she did not let the officers in because of her concerns regarding COVID-19. Once the officers had placed handcuffs on her, they carried her out of her home and onto a stretcher. They then wheeled the stretcher into an ambulance, where an EMT told her that they were going to § 87(2)(b). When the ambulance arrived at § 87(2)(b), they took § 87(2)(b) to the psychiatric ward. The officers took her handcuffs off and left, and after a few minutes, the hospital employees provided § 87(2)(b) with paperwork and allowed her to leave. She took a cab home.

The investigation was unable to obtain signed medical release forms from § 87(2)(b) and therefore, her medical records were unavailable.

EMT § 87(2)(b) and EMT Lieutenant § 87(2)(b) both testified that § 87(2)(b) could not refuse medical attention because she was considered an emotionally disturbed person (EDP), a decision made by the NYPD (BR 45-46).

Cpt. Malarkey testified that shortly after he arrived on scene, Insp. Delahanty arrived and took control of the situation, and that he was not involved in making any decisions regarding taking § 87(2)(b) to the hospital.

Cpt. Wilson testified that he made the determination that § 87(2)(b) needed to go to the hospital to be evaluated. He determined that she was emotionally disturbed because the Fire Department was there, there was water everywhere, she was not cooperating, she was fighting with the officers that took her out of the house, and because he was told she had a history of being emotionally disturbed. § 87(2)(b) was a danger to herself or others because the Fire Department was concerned that her actions could cause a fire. She was still considered a danger to herself or others until she was secured. Once she was taken out of the house, handcuffed, and strapped to a stretcher, allowing the officers to turn off the water unimpeded, she was still taken to the hospital because Cpt. Wilson believed that if they had let her go after this, she would have turned the water back on, so she needed to be evaluated to make sure she was of sound mind. Cpt. Wilson believed the water leak had started because § 87(2)(b) had clogged the pipes.

On March 25, 2022, the NYPD's Department Advocate Office confirmed that Insp. Delahanty had retired as of March 1, 2021 (**BR 47**); he therefore was not interviewed.

NYPD Patrol Guide Procedure 221-13 states that when a uniformed member of service reasonably believes that a person who is apparently mentally ill or emotionally disturbed must be taken into protective custody because the person is conducting himself in a manner likely to result in serious injury to himself or others, members of service must request an ambulance, attempt to isolate and contain the EDP while maintaining a zone of safety, and have the EDP removed to the hospital in an ambulance, restraining them if necessary (**BR 48**).

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one other CCRB complaint and has been named as a victim in one other allegation (**BR 49**):
 - § 87(2)(b)
- Insp. Delahanty was a member of service for 34 years and was a subject in five other CCRB complaints and six other allegations, none of which were substantiated. § 87(2)(g)
- Cpt. Wilson, now a Deputy Inspector, has been a member of service for 22 years and has been a subject in five other CCRB complaints and seven other allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On March 26, 2022, a request for any record of a Notice of Claim being filed regarding this incident was sent to the New York City Office of the Comptroller. The response will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 13

Investigator: Isabel Cifarelli Inv. Isabel Cifarelli 03/30/2022
Signature Print Title & Name Date

Squad Leader: Laura Kastner IM Laura Kastner 03/30/2022
Signature Print Title & Name Date